



SPONSOR: Sen. Pettyjohn & Rep. Jones Giltner & Sen. Pinkney &
Rep. Chukwuocha & Rep. K. Williams & Sen. Hoffner &
Rep. Romer
Sens. Buckson, Lockman, Seigfried, Sokola; Reps. Berry,
Burns, Dukes, Morrison, Ortega, Osienski,
Michael Smith, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 208

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO PSYCHOLOGY PROFESSIONALS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Three-fifths of all members elected to each house thereof concurring therein):

Section 1. Amend § 3502, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3502. Definitions.

~~The following words, terms and phrases, when used in this chapter shall have the meanings ascribed to them under this section, except where the context clearly indicates a different meaning:~~ For purposes of this chapter:

(1) “Board” ~~shall mean~~ means the State Board of Examiners of Psychologists established in this chapter.

(3) “Doctoral-level psychological assistant” means an individual who is registered with the Board to perform only the specific functions within the practice of psychology that are listed in the statement submitted under § 3509(a)(1) of this title, only under the direct supervision of a supervising psychologist, and who is authorized by the Board to use the title “doctoral-level psychological assistant.”

(3) (4) “Excessive use or abuse of drugs” ~~shall mean~~ means any use of narcotics, controlled ~~substances~~ substances, or illegal drugs without a prescription from a licensed physician, or the abuse of alcoholic ~~beverage~~ beverages such that it impairs the ~~person’s~~ individual’s ability to perform the work of a ~~psychologist~~ psychologist, licensed psychology associate, doctoral-level psychological assistant, or master’s-level psychological assistant.

(4) “Person” ~~shall mean a corporation, company, association and partnership, as well as an individual.~~

(5) “Licensed psychology associate” means an individual who licensed and authorized to engage on the practice of psychology under § 3508A of this title.

(6) “Licensee” means an individual who is licensed as a psychologist or a licensed psychology associate under this chapter.

(7) “Master’s-level psychological assistant” means an individual who is registered with the Board to perform only the specific functions within the practice of psychology that are listed in the statement submitted under §

3509A(a)(1) of this title, only under the direct supervision of a supervising psychologist or a supervising licensed psychology associate, and who is authorized by the Board to use the title “master’s-level psychological assistant”, while attaining further requirements for licensure, as specified by the Board.

(5) (8)a. “Practice of psychology” ~~shall mean the observation, description, evaluation, interpretation and modification of human behavior~~ means observing, describing, evaluating, testing, assessing, interpreting, and modifying human behavior by the application of applying psychological principles, methods, and/or procedures, for the purpose of preventing or eliminating and procedures that are grounded in a scientific orientation toward psychological knowledge and methods, for 1 or more of the following purposes:

1. Preventing, evaluating, assessing, or treating any symptomatic, ~~maladaptive~~ maladaptive, or undesired behavior, and of enhancing behavior, emotion, cognition, physical condition, or social barrier.

2. Evaluating, assessing, treating, or facilitating the enhancement of individual, family, or group effectiveness, including adaptive behavior, interpersonal relationships, work and life adjustment, personal effectiveness, behavioral health and health, mental health, health, and individual or group performance.

b. The practice of psychology includes psychological testing and the all of the following:

1. Psychological testing.

2. The evaluation or assessment of individual or group performance.

3. Conducting evidence-based assessments or evaluations of personal characteristics, such as intelligence, personality, abilities, interests, aptitudes aptitudes, behavior, achievement, and neuropsychological function; function.

4. Providing evidence-based therapeutic interventions, such as counseling, psychoanalysis, psychotherapy, hypnosis, biofeedback, and behavior analysis and therapy; diagnosis and treatment of therapy to improve mental, behavioral, physical, functional, and sociocultural health and wellness.

5. Diagnosing, treatment planning, treating, and managing psychological function; mental and emotional disorder or disability, disorders; mental, developmental, or intellectual disabilities; alcoholism and substance abuse, misuse; substance use disorders; disorders of habit or conduct, as well as conduct; and the psychological functional, and sociocultural aspects of physical illness, accident, injury injury, or disability; and disability.

6. Providing psychoeducational evaluation, therapy, remediation, and consultation. Psychological services may be rendered to individuals, families, groups, organizations, institutions and the public.

7. Providing psychological screening, interviewing, and diagnostic assessment to carry out the psychological services listed under paragraph § 3502(8)b.3. of this title.

8. Consulting and collaborating with other professionals on patient or family diagnoses, impairment, treatment planning, and removing barriers to health or care.

9. Conducting psychological testing.

10. Supervising a doctoral-level psychological assistant, subject to § 3509 of this title.

11. Supervising a master's-level psychological assistant, subject to § 3509A of this title.

c. The "practice of psychology" is grounded in a scientific orientation towards psychological methods, including using, to the extent possible, existing evidence-based literature or, if relevant evidence-based literature does not exist, a scientific orientation to guide professional activities and decision-making.

d. ~~The practice of psychology shall be construed within the meaning of this definition without regard to "practice of psychology" occurs regardless of whether or not payment is received for services rendered.~~

a. ~~"Psychological testing" shall mean, but not be limited to: Administration and interpretation of standardized intelligence and neuropsychological tests which yield an intelligence quotient and/or are the basis for a diagnosis of organic brain syndromes for the purposes of classification and/or disability determination; and~~

b. ~~The administration and interpretation of psychological tests which are the basis of a diagnosis of mental or emotional disorder.~~

~~(6) "Psychological assistant" shall mean a person who is registered with the Board to perform certain functions within the practice of psychology, only under the direct supervision of a supervising psychologist, and who is authorized by the Board to use the title "psychological assistant." The Board in its rules and regulations will specify the arrangements for supervision by the licensed psychologist.~~

~~(7)~~ (9) "Psychologist" shall mean a person means an individual who makes representations to the public by any title or description of services incorporating the words "psychology," "psychological," "psychologist," or who engages in the practice of psychology.

(10) "Psychological testing" includes administration and interpretation of all of the following:

a. Standardized intelligence and neuropsychological tests that yield an intelligence quotient or are the basis for a diagnosis of organic brain syndromes for the purposes of classification or disability determination.

b. Psychological tests that are the basis of a diagnosis of mental or emotional disorder.

(11) "Registrant" means an individual who is registered as a doctoral-level psychological assistant or master's-level psychological assistant under this chapter.

(8) (12) "Substantially related" means the nature of the criminal conduct, for which ~~the person was an~~
individual is convicted, has a direct bearing on the fitness or ability to perform 1 or more of the duties or
responsibilities necessarily related to the practice of psychology.

(13) "Supervising licensed psychology associate" means a licensed psychology associate licensed in this State
who applies to the Board for the registration of a master's-level psychological assistant under § 3509A of this title.

(9) (14) "Supervising psychologist" ~~shall mean~~ means a psychologist licensed in this State who ~~has practiced~~
~~as a licensed psychologist for 2 years in this or any other jurisdiction and who~~ applies to the Board for the registration
of a ~~psychological assistant~~ doctoral-level psychological assistant, under § 3509 of this title, or a master's-level
psychological assistant, under § 3509A of this title.

(10) (15) "Supervision" ~~shall mean~~ means the face-to-face consultation between ~~the~~ a doctoral-level
psychological assistant or master's level psychological assistant and the supervising ~~psychologist~~ psychologist or
supervising licensed psychology associate, as required by the nature of the work of the doctoral-level psychological
assistant or master's-level psychological assistant. ~~The supervising psychologist is responsible for insuring that the~~
~~extent, kind and quality of the services rendered by the psychological assistant are consistent with the person's~~
~~education, training and experience.~~

Section 2. Amend § 3503, Title 24 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3503. Board of Examiners of Psychologists; appointments; qualifications; term; vacancies; suspension or
removal; unexcused absences; compensation.

(a) There is created a State Board of Examiners of Psychologists which shall administer and enforce this chapter.

(b) The Board ~~shall consist~~ consists of 9 members who are appointed by the ~~Governor, who are~~ Governor and
meet the following qualifications:

(1) All 9 members must be residents of this state: ~~State, 5 of whom shall~~

(2) Five of the members must be psychologists licensed under this chapter and 4 ~~chapter.~~

(3) Four members must be public members.

(4) At least 3 members of the Board shall ~~must~~ be engaged full time in the practice of psychology.

(5) The public members shall ~~may~~ not be, nor ever have been, ~~psychologists~~ psychologists, licensed
psychology associates, doctoral-level psychological assistants, or master's-level psychological assistants, nor members
of the immediate family of a ~~psychologist~~ psychologist, licensed psychology associate, doctoral-level psychological
assistant, or master's-level psychological assistant; shall ~~may~~ not have been employed by a ~~psychologist or~~

psychologist, licensed psychology associate, doctoral-level psychological ~~assistant; shall~~ assistant, or master's-level psychological assistant; ~~may~~ not have a material interest in the providing of goods and services to psychologists, licensed psychology associates, doctoral-level psychological assistants, or master's-level psychological assistants; ~~nor and may not~~ have been engaged in an activity directly related to psychology. The public members ~~shall~~ must be accessible to inquiries, ~~comments~~ comments, and suggestions from the general public.

(c) Except as otherwise provided in subsection (d) of this section, each member ~~shall serve a term of~~ is appointed ~~for a period of 3 years, years~~ and may serve 1 additional term in succession; ~~provided, however, that where if~~ a member was initially appointed to fill a vacancy, ~~such the~~ member may serve only 1 additional full term in succession. Any ~~person~~ individual appointed to fill a vacancy on the Board ~~shall hold office~~ serves for the remainder of the unexpired term of the former member. Each ~~member's term of office shall expire~~ expires on the date specified in the appointment; however, the Board member ~~shall remain~~ remains eligible to participate in Board proceedings ~~unless and~~ until replaced by the Governor. ~~Persons who are members of the Board on June 12, 1995, shall complete their terms.~~

(d) ~~A person~~ An individual who has never served on the Board may be appointed to the Board for 2 consecutive ~~terms; but no such person shall thereafter be~~ terms; however, after the individual has been appointed for 2 consecutive terms the individual is not eligible for 2 consecutive appointments. ~~No person,~~ An individual who has been twice appointed to the Board or who has served on the Board for 6 years within any 9-year period, ~~shall again~~ period may not be appointed to the Board again until an interim period of at least 1 year has expired since ~~such person~~ the individual last served.

(e) Any act or vote by ~~a person~~ an individual appointed in violation of this section ~~shall be~~ is invalid. An amendment or revision of this chapter is not sufficient cause for any appointment or attempted appointment in violation of subsection (d) of this section, unless ~~such an~~ the amendment or revision amends this section to permit such an appointment.

(f) ~~A~~ The Governor may suspend or remove a member of the Board shall be suspended or removed by the Governor for misfeasance, nonfeasance, malfeasance, misconduct, ~~incompetency~~ incompetency, or neglect of duty. A member subject to disciplinary hearing ~~shall be~~ is disqualified from Board business until the charge is adjudicated or the matter is otherwise concluded. A Board member may appeal any suspension or removal to the Superior Court.

(g) ~~No member of the Board, while~~ While serving on the Board, ~~shall~~ a member may not hold elective office in any professional association of psychologists.

(h) The provisions set forth for "employees" in Chapter 58 of Title 29 ~~shall~~ apply to all members ~~of the Board,~~ and to all agents appointed, or otherwise employed, by the Board.

(i) Any member who is ~~absent~~ absent, without adequate ~~reason~~ reason, for 3 consecutive meetings, or who fails to attend at least half of all regular ~~business~~ Board meetings during any calendar year, ~~shall be guilty of~~ is deemed in neglect of duty.

(j) Each member ~~of the Board shall~~ must be reimbursed for all expenses involved in each meeting, including travel, and in addition ~~shall~~ must receive compensation per meeting attended in an amount determined by the Division ~~in accordance with Del. Const. art. III, § 9. of Professional Regulation under Section 9 of Article III of the Delaware Constitution.~~

Section 3. Amend § 3504, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3504. Organization; meetings; officers; quorum.

(a) The Board shall hold regularly scheduled ~~business~~ meetings at least once in each quarter of a calendar year, and at ~~such~~ other times as the President deems ~~necessary; or,~~ necessary or at the request of a majority of the ~~Board~~ members.

(b) The Board shall elect annually a President, ~~Vice-President~~ Vice President, and Secretary. Each officer shall serve for 1 year, and ~~shall not succeed himself or herself~~ each officer may not be elected for more than 2 consecutive terms.

(c) A majority of the members ~~shall constitute~~ constitutes a quorum for the purpose of transacting business. ~~No disciplinary~~ Disciplinary action ~~shall~~ may not be taken without the affirmative vote of at least 5 ~~members of the Board.~~ members.

(d) Minutes of all meetings ~~shall~~ must be recorded, and copies ~~shall~~ must be maintained by the Division of Professional Regulation. At any hearing where evidence is presented, a record from which a verbatim transcript can be prepared ~~shall~~ must be made. The ~~expense~~ cost of preparing any transcript ~~shall be incurred~~ is paid by the person requesting ~~it.~~ the transcript.

Section 4. Amend § 3505, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3505. Records.

(a) The Division of Professional Regulation shall keep a all of the following:

(1) A register of all applications for license licensure as a psychologist or licensed psychology associate, and for registration of doctoral-level psychological assistant or master's-level psychological assistants, and complete assistant.

(2) Complete records relating to meetings all of the following:

a. Meetings of the Board, examinations, Board.

b. Examinations, rosters,

c. Rosters, changes

d. Changes and additions to the Board's rules and ~~regulations, complaints,~~ regulations.

e. Complaints, hearings

f. Hearings, and such other

g. Other matters as the Board ~~shall~~ may determine. ~~Such~~

(b) ~~The records shall be kept under this section are~~ prima facie evidence of the proceedings of the Board.

Section 5. Amend § 3506, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3506. Powers and duties.

(a) The Board of Examiners of Psychologists ~~shall have authority to:~~ may do all of the following:

(1) ~~Formulate~~ Promulgate rules and regulations, with appropriate notice to those affected; ~~all rules and regulations shall be promulgated affected and~~ in accordance with the procedures specified in the Administrative Procedures Act ~~[Chapter 101 of Title 29] of this State. [Chapter 101 of Title 29].~~ Each rule or regulation shall ~~must~~ implement or clarify a specific section of this chapter; chapter.

(2) Designate the application form to be used by all applicants, and to process all ~~applications;~~ applications.

(3) Designate the ~~written,~~ written standardized Examination for Professional Practice in Psychology (EPPP) ("EPPP") to be taken by all ~~persons~~ applicants applying for ~~licensure; applicants licensure.~~ Applicants who qualify for licensure by reciprocity ~~shall~~ must have achieved a passing score on the ~~EPPP; EPPP.~~

(4) Provide for the administration of all examinations, including notice and information to applicants. ~~The Board shall adopt the administration, grading procedures and passing score of the Association of State and Provincial Psychology Boards (ASPPB), or of a comparable alternative national or regional examination, if a national examination is not available;~~

(5) Establish minimum education, ~~training~~ training, and experience requirements for licensure as psychologists or licensed psychology associates and for registration as doctoral-level psychological assistants; assistants or master's-level psychological assistants.

(6) Evaluate the credentials of all ~~persons~~ applicants applying for ~~a license to practice psychology in Delaware~~ licensure as a psychologist or licensed psychology associate and ~~persons~~ all individuals applying for ~~whom~~ registration as a doctoral-level psychological assistant or a master's-level psychological assistant requested, assistant, in order to

determine ~~whether such persons meet~~ if each individual meets the qualifications for licensing or registration set forth in this ~~chapter;~~ chapter.

(7) Grant licenses ~~to, and renew licenses and registrations of,~~ to and renew the licenses of all persons individuals who meet the qualifications for licensure ~~and/or or license renewal of licenses;~~ and register persons under this chapter.

(8) Register and renew the registration of all individuals who meet the qualifications ~~to act as psychological assistants under the direct supervision of a licensed psychologist;~~ for registration or registration renewal under this chapter.

~~(8) Establish~~ (9) Establish, by rule and ~~regulation~~ regulation, continuing education standards required for license renewal and registration ~~renewal;~~ renewal.

(9) (10) Evaluate certified records to determine ~~whether~~ if an applicant for licensure or registration, who has been previously licensed, ~~certified~~ certified, or registered in another jurisdiction to engage in the practice of psychology, has ~~engaged in~~ committed any act or offense that would be grounds for disciplinary action under this chapter and ~~whether~~ if there are disciplinary proceedings or unresolved complaints pending against ~~such~~ the applicants for ~~such acts~~ the act or offenses; offense.

(10) (11) Refer to the Division of Professional Regulation, for investigation pursuant to § 8735(h) Title 29, all complaints from licensees and the public concerning ~~licensed psychologists and registered psychological assistants, or concerning practices of the Board or of the profession, to the Division of Professional Regulation for investigation pursuant to § 8735(h) of Title 29;~~ and assign any of the following:

a. Licensees.

b. Registrants.

c. The Board's practices.

d. The practice of psychology.

(12) Assign a member ~~of the Board~~ to assist the Division of Professional Regulation, in an advisory ~~capacity~~ capacity, with the investigation of the technical aspects of ~~the complaint;~~ a complaint referred under paragraph (a)(11) of this section.

(11) (13) Conduct hearings and issue orders in accordance with procedures established ~~pursuant to~~ under this chapter, Chapter 101 of Title 29, and § 8735(h) of Title 29. ~~Where such~~ But if the provisions of Chapter 101 of Title 29 or § 8735(h) of Title 29 conflict with the provisions of this chapter, this chapter shall govern. The Board shall

determine whether or not a psychologist shall be subject to a disciplinary hearing, and if so, shall conduct such hearing in accordance with this chapter and the Administrative Procedures Act [Chapter 101 of Title 29]; governs.

(12) ~~Where (14) If it has been~~ is determined after a disciplinary hearing that penalties or sanctions should be imposed, to designate and impose the appropriate sanction or penalty after time for appeal has ~~lapsed~~; lapsed.

(13) ~~(15) Suspend or revoke a supervising psychologist's authorization to supervise a psychological assistant; doctoral-level psychological assistant or a master's-level psychological assistant, suspend or revoke a supervising licensed psychology associate's authorization to supervise a master's-level psychological assistant, and to otherwise discipline a supervising psychologist or a supervising licensed psychology associate whenever a doctoral-level psychological assistant or a master's-level psychological assistant is in violation of this chapter or guilty of commits any of the acts or offenses that are grounds for disciplinary action under this chapter;~~ chapter.

(14) ~~(16) Determine the number of doctoral-level psychological assistants and master's-level psychological assistants that a supervising psychologist may supervise, the number of master's-level psychological assistants a supervising licensed psychology associate may supervise, and the requirements of their for the supervision.~~

(b) The Board of Examiners of Psychologists shall ~~promulgate~~ do all of the following:

(1) Promulgate regulations specifically identifying those crimes which are substantially related to the practice of psychology.

(2) Determine if a licensee or registrant is subject to a disciplinary hearing, and if so, shall conduct the hearing in accordance with this chapter and the Administrative Procedures Act [Chapter 101 of Title 29].

(3) Adopt the administration, grading procedures, and passing score of the Association of State and Provincial Psychology Boards ("ASPPB"), or, if a national examination is not available, of a comparable alternative national or regional examination.

Section 6. Amend § 3507, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3507. License; registration required.

(a) ~~No person shall engage~~ Unless an individual has been duly licensed under this chapter, the individual may not do any of the following:

(1) Engage in the practice of psychology or hold himself or herself out psychology.

(2) Represent to the public in this State as ~~being~~ that the individual is qualified to engage in the practice psychology; or use of psychology.

(3) Use in connection with that ~~person's~~ individual's name, or otherwise assume or use, any title or description conveying or tending to convey the impression that ~~that person~~ the individual is qualified to engage in the practice psychology, ~~unless such person has been duly licensed under this chapter.~~ of psychology.

(b) ~~Whenever a~~ If an individual's license to practice as a psychologist or a licensed psychology associate in this State has expired or has been suspended or revoked, it ~~shall be~~ is unlawful for the ~~person~~ individual to engage in the practice of psychology in this State.

(c) ~~No person shall~~ An individual may not act as a doctoral-level psychological assistant or ~~hold out that that~~ person is a master's-level psychological assistant or represent that the individual is a doctoral-level psychological assistant or a master's-level psychological assistant, unless ~~such person~~ the individual has been duly registered ~~by the Board~~ under this chapter.

Section 7. Amend § 3508, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3508. Qualifications of ~~applicant~~; applicants for licensure as a psychologist; report to Attorney General; judicial review.

(a) An applicant who is applying for licensure as a psychologist under this chapter shall submit evidence, verified by oath and satisfactory to the Board, that ~~such person has:~~ the applicant has done all of the following qualifications:

(1)a. Received a doctoral degree based on a program of ~~studies which~~ study that is psychological in content and specifically designed to train and prepare psychologists. The doctoral degree must be ~~from~~ all of the following:

1. From an accredited a college or university having accredited by the United States Department of Education or by an accrediting agency recognized by the Council on Postsecondary Accreditation, or its successor, and which has a graduate program which that states its purpose to be the training and preparation of psychologists. ~~The college or university must be accredited by the United States Department of Education or by an accrediting agency which is recognized by the Council on Postsecondary Accreditation, or its successor.~~
~~The doctoral degree must be based~~

2. Based on a program of studies accredited as a professional psychology program by the American Psychological Association (APA), ("APA"), the Psychological Clinical Science Accreditation System (PCSAS), ("PCSAS"), or an equivalent program approved by the Board. ~~Persons~~

b. Applicants holding degrees from programs outside the United States or its territories must provide evidence of training and a degree equivalent to accredited programs. ~~These~~ The applicants are ~~responsible for~~ providing the Board with an educational credential evaluation from an agency or institution recognized by the

~~Board for this purpose; and required to have their credentials evaluated by a credential evaluation service,~~
~~approved by the National Association of Credential Evaluation Services ("NACES"), to determine equivalency to~~
~~the accreditation requirements of this subsection.~~

(2) Successfully completed a predoctoral internship which complies with the Board's rules and ~~regulations;~~
~~and regulations.~~

(3) ~~Had, after~~ After receiving the doctoral ~~degree,~~ degree required under paragraph (a)(1) of this section, has
at least 1 year of supervised professional experience in psychological work of a type satisfactory to the ~~Board; and~~
Board.

(4) Achieved ~~the a~~ passing score on the ~~written standardized Examination for Professional Practice in~~
~~Psychology (EPPP) EPPP~~ developed by the ~~Association of State and Provincial Psychology Boards (ASPPB); ASPPB,~~
~~or its successor; and successor.~~

(5) Subject to ~~the provisions of~~ § 8735(x) of Title 29, has not engaged in any of the acts or offenses that would
be grounds for disciplinary action under this ~~chapter;~~ chapter and has no disciplinary proceedings or unresolved
complaints pending against the applicant in any jurisdiction where the applicant has previously been or currently is
licensed or certified as a psychologist.

~~(b) Where~~ (b)(1) An applicant must submit, at the applicant's expense, fingerprints and other necessary
information to obtain all of the following:

a. A report of the applicant's entire criminal history record from the State Bureau of Identification or a
statement from the State Bureau of Identification that the State Central Repository contains no criminal history
information relating to that applicant.

b. A report of the applicant's entire federal criminal history record under the Federal Bureau of
Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State Bureau of Identification
is the intermediary for purposes of this subsection and the Board is the screening point for the receipt of federal
criminal history records.

(2) In addition to the evidence submitted under subsection (a) of this section, an applicant shall submit the
reports obtained under paragraph (b)(1) of this section to the Board.

(3) Unless a waiver is granted under § 8735(x)(3) of Title 29, the Board may not grant a license to an
applicant whose record shows a prior criminal conviction that is substantially related to the practice of psychology.

(4) The State Bureau of Identification may release any subsequent criminal history to the Board.

316 (c) Whenever the Board has found to its satisfaction finds that an application ~~has been~~ is intentionally fraudulent,
317 or that false information ~~has been~~ is intentionally supplied, ~~it~~ the Board shall report its findings to the Attorney General for
318 further action.

319 ~~(c) Where~~ (d) An applicant may appeal to the Superior Court if the applicant's application of a person has been
320 refused or rejected and ~~such~~ the applicant feels that the Board has ~~acted~~ done any of the following:

321 (1) Acted without justification; has imposed justification.

322 (2) Imposed higher or different standards for the applicant than for other applicants or licensees; or has in
323 licensees.

324 (3) In some other manner contributed to or caused the failure of such application, the applicant may appeal to
325 the Superior Court. the applicant's application.

326 Section 8. Amend Chapter 35, Title 24 of the Delaware Code by making deletions as shown by strike through and
327 insertions as shown by underline as follows:

328 § 3508A. Qualifications of applicants for licensure as a licensed psychology associate; scope of practice; report to
329 Attorney General; judicial review.

330 (a) An applicant who is applying for licensure as a licensed psychology associate under this chapter shall submit
331 evidence, verified by oath and satisfactory to the Board, that the applicant meets all of the following qualifications:

332 (1)a. Received a master's degree based on a program of study, with a minimum of 60 graduate semester
333 hours, that is psychological in content and specifically designed to train and prepare individuals for the practice of
334 psychology. The master's degree must be all of the following:

335 1. From a college or university accredited by the United States Department of Education or by an
336 accrediting agency recognized by the Council on Postsecondary Accreditation, or its successor, and which has
337 a graduate program that states its purpose to be the training and preparation of psychologists.

338 2. Based on a program of studies accredited as a professional psychology program by the American
339 APA, the PCSAS, or an equivalent program approved by the Board.

340 b. Applicants holding degrees from programs outside the United States or its territories must provide
341 evidence of training and a degree equivalent to accredited programs. The applicants are required to have their
342 credentials evaluated by a credential evaluation service, approved by NACES, to determine equivalency to the
343 accreditation requirements of this subsection.

344 (2) Successfully completed an internship that complies with the Board's rules and regulations.

(3) After receiving the master's degree required under paragraph (a)(1) of this section, has at least 2 years of supervised professional experience in psychological work of a type satisfactory to the Board.

(4) Achieved a passing score on the EPPP developed by the ASPPB, or its successor.

(5) Subject to § 8735(x) of Title 29, has not engaged in any acts or offenses that are grounds for disciplinary action under this chapter and has no disciplinary proceedings or unresolved complaints pending against the applicant in any jurisdiction where the applicant has previously been or currently is licensed or certified to engage in the practice of psychology.

(b)(1) An applicant must submit, at the applicant's expense, fingerprints and other necessary information to obtain all of the following:

a. A report of the applicant's entire criminal history record from the State Bureau of Identification or a statement from the State Bureau of Identification that the State Central Repository contains no criminal history information relating to that applicant.

b. A report of the applicant's entire federal criminal history record under the Federal Bureau of Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State Bureau of Identification is the intermediary for purposes of this subsection and the Board is the screening point for the receipt of federal criminal history records.

(2) In addition to the evidence submitted under subsection (a) of this section, an applicant shall submit the reports obtained under paragraph (b)(1) of this section to the Board.

(3) Unless a waiver is granted under § 8735(x)(3) of Title 29, the Board may not grant a license to an applicant whose record shows a prior criminal conviction that is substantially related to the practice of psychology.

(4) The State Bureau of Identification may release any subsequent criminal history to the Board.

(c) Whenever the Board finds that an application is intentionally fraudulent, or that false information is intentionally supplied, the Board shall report its findings to the Attorney General for further action.

(d) An applicant may appeal to the Superior Court if the applicant's application has been refused or rejected and the applicant feels that the Board has done any of the following:

(1) Acted without justification.

(2) Imposed higher or different standards for the applicant than for other applicants or licensees.

(3) In some other manner contributed to or caused the failure of the applicant's application.

(e)(1) Except as otherwise provided in paragraph (e)(2) of this section, a licensed psychology associate may independently engage in the practice of psychology at the master's-level of education and within the scope of the licensed

psychology associate's training. A licensed psychology associate may use screening instruments, questionnaires, rating scales, general measures of cognitive abilities and achievement, or interview guides that are generally available to all mental health professionals, including all of the following:

a. Brief screening instruments of orientation and current mental status.

b. Repeated measures of symptoms related to psychopathology.

c. General measures of aptitude and interest.

(2) A licensed psychology associate may not engage in the practice of psychology that involves comprehensive specialty and subspecialty testing, assessment, and consultations that requires doctoral-level psychology education and training. Additionally, licensed psychology associate may not do any of the following:

a. Accept referrals for neuropsychological evaluations or perform neuropsychological evaluations.

b. Accept referrals for forensic evaluations or perform forensic evaluations, including capacity or competency evaluations and evaluations that involve local security, national security, or potential risk to the public.

c. Medical or health capacity evaluations, including pre-surgical evaluations, consultation-liaison assessments in an acute medical care setting, and medical specialty consultations regardless of the setting.

d. Personality, performance, and projective evaluations and assessments if the conclusions from the evaluations or assessments serve as a final determination, including second opinion evaluations.

e. Child custody and parental fitness evaluations.

f. Public safety employment evaluations, including fitness for duty evaluations.

(f) A licensed psychology associate may not hold themselves out to the public by any title or description stating or implying that the licensed psychology associate is a licensed psychologist, including a neuropsychologist or a forensic psychologist.

Section 9. Amend § 3509, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3509. Qualifications for registration as a doctoral-level psychological assistant; number of doctoral-level psychological assistants; requirements ~~of~~ for supervision.

(a) Any psychologist licensed in this ~~State~~, State who has practiced as a licensed psychologist for ~~2 years in this State or in any other jurisdiction, and who applies~~ years may apply to the Board for the registration of a doctoral-level psychological assistant ~~shall~~: assistant. Whenever a psychologist applies to the Board for the registration of a doctoral-level psychological assistant, the psychologist shall do all of the following:

(1) Provide the Board with a statement ~~which that~~ clearly ~~shall delineate~~ delineates the specific functions ~~which the~~ that the proposed doctoral-level psychological assistant will perform under the ~~supervisor's supervising~~ psychologist's direct supervision and control; and control.

(2) Submit evidence, verified by oath and satisfactory to the Board, that ~~such person;~~ the proposed doctoral-level psychological assistant meets all of the following qualifications:

a.1. Has completed all requirements for a doctoral degree in psychology from an ~~American Psychological Association (APA)~~ APA accredited program, ~~or a Psychological Clinical Science Accreditation System (PCSAS)~~ PCSAS accredited program, or an equivalent program approved by the Board. ~~Psychological assistants~~ A doctoral-level psychological assistant registered before July 17, 2010, and who maintain their maintains the doctoral-level psychological assistant's registration ~~are is~~ exempt from this requirement. ~~Persons~~

2. Subject to paragraph (a)(2)a.1. of this section, proposed doctoral-level psychological assistants holding degrees from programs outside the United States or its territories must provide evidence of training and a degree equivalent to accredited programs; programs, and these applicants The proposed doctoral-level psychological assistants ~~are responsible for providing the Board with an educational credential evaluation from an agency or institution recognized by the Board for this purpose; and required to have their credentials evaluated by a credential evaluation service, approved by NACES, to determine equivalency to the accreditation requirements of this subsection.~~

b. Has successfully completed a predoctoral internship which complies with the Board's rules and ~~regulations; and regulations.~~

c. Will perform the specific ~~functions, which~~ functions that are delineated by the supervising psychologist in the statement of intended area or areas of practice, from the office of the supervising ~~psychologist; and psychologist.~~

d. Will receive proper ~~training and~~ training, will fulfill continuing education ~~requirements~~ requirements, and will be supervised, ~~directed~~ directed, and evaluated in accordance with a specific supervisory plan that shall must include face-to-face consultation as required by the nature of the work of the proposed doctoral-level psychological assistant; and assistant.

e. Subject to the provisions of § 8735(x) of Title 29, has not engaged in any acts or offenses that would be grounds for disciplinary action under this ~~chapter; and, has no~~ chapter and does not have disciplinary proceedings or unresolved complaints pending against the ~~applicant~~ proposed doctoral-level psychological assistant in any

jurisdiction where the ~~individual~~ proposed doctoral-level psychological assistant has been or currently is licensed,
~~registered~~ registered, or certified to engage in the practice of psychology.

(b) ~~Persons,~~ An individual who ~~are~~ is presented to the Board by a supervising psychologist for registration as
~~psychological assistants,~~ a doctoral-level psychological assistant shall provide statements under oath to the Board that ~~they:~~
the individual will do all of the following:

(1) Perform only ~~those~~ the specific functions ~~which have been~~ that are delineated in the supervising
psychologist's ~~statement; and~~ statement.

(2) Not practice independently, but only under the supervision of a licensed ~~psychologist; and~~ psychologist.

(3) Not represent themselves as a licensed psychologist. ~~psychologists.~~ psychologist.

(c)(1) An individual presented for registration under this section must submit, at the individual's expense,
fingerprints and other necessary information to obtain all of the following:

a. A report of the individual's entire criminal history record from the State Bureau of Identification or a
statement from the State Bureau of Identification that the State Central Repository contains no criminal history
information relating to that individual.

b. A report of the individual's entire federal criminal history record under the Federal Bureau of
Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State Bureau of Identification
is the intermediary for purposes of this subsection and the Board is the screening point for the receipt of federal
criminal history records.

(2) In addition to the evidence submitted under subsection (a) of this section, a psychologist shall submit the
reports obtained under paragraph (b)(1) of this section to the Board.

(3) Unless a waiver is granted under § 8735(x)(3) of Title 29, the Board may not grant a license to an
applicant whose record shows a prior criminal conviction that is substantially related to the practice of psychology.

(4) The State Bureau of Identification may release any subsequent criminal history to the Board.

(d) ~~The Board~~ Board, in its ~~regulations~~ regulations, shall determine the number of doctoral-level psychological
assistants that a supervising psychologist may ~~supervise;~~ supervise and the requirements ~~of their supervision.~~ for
supervision.

(e) An individual registered under this section as a "psychological assistant" before [the implementation date of
this Act] is considered a "doctoral-level psychological assistant" and may use the title "doctoral-level psychological
assistant", as approved by the Board.

Section 10. Amend Chapter 35, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3509A. Qualifications for registration as a master's-level psychological assistant; number of master's-level psychological assistants; requirements for supervision.

(a) A psychologist or licensed psychology associate licensed in this State who has practiced as a licensed psychologist or licensed psychology associate for 3 years may apply to the Board for the registration of a master's-level psychological assistant. Whenever a licensed psychologist or licensed psychology associate applies to the Board for the registration of a master's-level psychological assistant, the licensed psychologist or licensed psychology associate shall do all of the following:

(1) Provide the Board with a statement that clearly delineates the specific functions which the proposed master's-level psychological assistant will perform under the supervising psychologist's or supervising licensed psychology associate's direct supervision and control.

(2) Submit evidence, verified by oath and satisfactory to the Board, that the proposed master's-level psychological assistant meets all of the following qualifications:

a.1. Has completed all requirements for a master's degree in psychology from an APA accredited program, a PCSAS accredited program, or an equivalent program approved by the Board.

2. Applicants holding degrees from programs outside the United States or its territories must provide evidence of training and a degree equivalent to accredited programs. The proposed master's-level psychological assistants are required to have their credentials evaluated by a credential evaluation service, approved by NACES, to determine equivalency to the accreditation requirements of this subsection.

b. Is seeking further requirements for licensure under this chapter, as specified by the Board's rules and regulations.

c. Will perform the specific functions that are delineated by the supervising psychologist or the supervising licensed psychology associate in the statement of intended area or areas of practice, from the office of the supervising psychologist or supervising licensed psychology associate.

d. Will receive proper training, will fulfill continuing education requirements, and will be supervised, directed, and evaluated in accordance with a specific supervisory plan that must include face-to-face consultation as required by the nature of the work of the proposed master's-level psychological assistant.

e. Subject to § 8735(x) of Title 29, has not engaged in any acts or offenses that would be grounds for disciplinary action under this chapter and does not have disciplinary proceedings or unresolved complaints

pending against the proposed master's-level psychological assistant in any jurisdiction where the proposed master's-level psychological assistant has been or currently is licensed, registered, or certified to engage in the practice of psychology.

(b) Individuals who are presented to the Board by a supervising psychologist or supervising licensed psychology associate for registration as a master's-level psychological assistant shall provide statements, under oath, to the Board that the individual will do all of the following:

(1) Perform only the specific functions that are delineated in the supervising psychologist's or supervising licensed psychology associate's statement.

(2) Not practice independently, but only under the supervision of a licensed psychologist or licensed psychology associate.

(3) Not represent themselves as licensed psychologists or licensed psychology associates.

(c)(1) An individual presented for registration under this section must submit, at the individual's expense, fingerprints and other necessary information to obtain all of the following:

a. A report of the individual's entire criminal history record from the State Bureau of Identification or a statement from the State Bureau of Identification that the State Central Repository contains no criminal history information relating to that individual.

b. A report of the individual's entire federal criminal history record under the Federal Bureau of Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State Bureau of Identification is the intermediary for purposes of this subsection and the Board is the screening point for the receipt of federal criminal history records.

(2) In addition to the evidence submitted under subsection (a) of this section, a licensed psychologist or licensed psychology associate shall submit the reports obtained under paragraph (b)(1) of this section to the Board.

(3) Unless a waiver is granted under § 8735(x)(3) of Title 29, the Board may not grant a license to an applicant whose record shows a prior criminal conviction that is substantially related to the practice of psychology.

(4) The State Bureau of Identification may release any subsequent criminal history to the Board.

(d) The Board in its regulations shall determine the number of master's-level psychological assistants that a supervising psychologist or a supervising licensed psychology associate may supervise and the requirements for supervision.

Section 11. Amend § 3510, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3510. Licensing or registration under special conditions; interstate practice of psychology.

(a) ~~Persons~~ Individuals who are ~~currently~~ licensed as psychologists or registered as doctoral-level psychological assistants in this State prior to June 12, 1995, ~~shall be~~ are considered to have been licensed or registered under this chapter and fully qualified to act as licensed psychologists or registered doctoral-level psychological assistants.

(b) The Board ~~will~~ shall qualify for licensing without examination any ~~person~~ individual who applies for licensure and who is a diplomate of the American Board of Professional Psychology, subject to the provisions of this chapter.

(c) Nothing in this chapter ~~shall be construed to prohibit~~ prohibits the practice of psychology in this State by a ~~person~~ an individual holding an earned doctoral degree in psychology from an institution of higher education, who is licensed or certified as a psychologist under the laws of another ~~jurisdiction; provided, that the jurisdiction if the individual~~ does not exceed an aggregate of 6 days of professional services as a psychologist, per calendar year, under the provision of this subsection is not exceeded. year.

(d) ~~A person~~ An individual practicing psychology in this State, under this section, may not engage in conversion therapy with a child or refer a child to a provider in another jurisdiction to receive conversion therapy.

Section 12. Amend § 3511, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3511. Reciprocity.

(a) ~~Where~~ If an applicant is already licensed or certified as a doctoral-level psychologist or a licensed psychological associate in another jurisdiction and has practiced continually for 2 years in that jurisdiction, the Board shall ~~require;~~ require all of the following:

(1) A certificate or other evidence that the applicant is currently licensed or certified.

(2) Evidence that the ~~psychologist~~ applicant has practiced continually for 2 years.

(3) Evidence that the ~~psychologist~~ applicant has achieved the passing score set by the Board on the ~~written standardized Examination for Professional Practice of Psychology (EPPP)~~ EPPP developed by the ~~Association of State and Provincial Psychology Boards (ASPPB)~~ ASPPB, or its ~~suecessor~~ successor, as approved by the Board.

(4) ~~Evidence~~ For an applicant applying as doctoral-level psychologist, evidence that the ~~candidate~~ applicant has received a doctoral degree in ~~psychology from a recognized educational institution;~~ psychology, or ~~in lieu of such degree, a doctoral degree in a closely-allied field if it is the opinion of the board~~ Board finds that the training required ~~therefor~~ for the doctoral degree in a closely-allied field is substantially ~~similar,~~ similar to the training required for a doctoral degree in psychology, from a recognized educational institution or has otherwise had training in psychology ~~deemed that the Board deems equivalent by the board. to a doctoral degree in psychology. Graduates of foreign~~

~~programs will be~~ Applicants holding a degree from a program outside the United States or its territories are required to have their credentials evaluated by a credential evaluation ~~service~~ service, approved by ~~the National Association of Credential Evaluation Services~~ NACES, to determine equivalency to the accreditation requirements of § 3508 of this title.

(5) For an applicant applying as a licensed psychological associate, evidence that the applicant has received a master's degree in psychology, or in a closely-allied field if the Board finds that the training required for the master's degree in a closely-allied field is substantially similar to the training required for a master's degree in psychology, from a recognized educational institution or has otherwise had training in psychology that the Board deems equivalent to a master's degree in psychology. Applicants holding a degree from a program outside the United States or its territories are required to have their credentials evaluated by a credential evaluation service, approved by the NACES, to determine equivalency to the accreditation requirements of § 3508A of this title.

(b)(1) ~~Upon receipt of an application from an applicant who has been or who currently is licensed, certified, or registered as a psychologist, or registered as a psychological assistant, in another jurisdiction, applying under this section, the Board shall contact request a certified statement from the licensing authority, or comparable agency, in such the other jurisdiction or jurisdictions and request a certified statement to determine whether or not if there are disciplinary proceedings or unresolved complaints pending against the applicant or whether if the applicant has engaged in any of the acts or offenses that would be grounds for disciplinary action under this chapter. In the event that~~

(2) If a disciplinary proceeding or unresolved complaint is pending, the applicant shall may not be licensed or registered until the proceeding or complaint has been resolved. Applicants for licensure under this section shall be are deemed to have given consent to the release of such information and to waive all objections to the admissibility of such evidence.

(c) In lieu of the documentation required by subsections (a) and (b) of this ~~section above,~~ section, the applicant may submit a certificate of professional qualification in psychology from a credential bank approved by the Board. The Board shall identify acceptable credentialing organizations in its rules and regulations. In addition, the Board may require the applicant to submit ~~such~~ supplemental information ~~as it~~ that the Board deems necessary to assure that the applicant meets the qualifications for licensure.

Section 13. Amend § 3512, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3512. Fees.

The amount ~~to be~~ charged for each fee imposed under this chapter ~~shall approximate and~~ must reasonably reflect all costs necessary to defray the expenses of the Board, as well as the proportional expenses incurred by the Division of Professional Regulation in its service on behalf of the Board. There ~~shall~~ must be a separate fee ~~charged~~ for each service or activity, but ~~no a fee shall~~ may not be charged for a purpose not specified in this chapter. The application fee ~~shall~~ may not be combined with any other ~~fee or charge~~. fee. At the beginning of each calendar year, the Division of Professional Regulation, or any other state agency acting ~~in~~ on its behalf, shall compute, for each separate service or activity, the appropriate Board fees for the coming year.

Section 14. Amend § 3513, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3513. Issuance and renewal of licenses; registration.

(a) The Board shall issue a license or register each applicant who meets the requirements of this chapter for licensure as a psychologist or a licensed psychology associate ~~or for registration as a doctoral-level psychological assistant or master's-level psychological assistant~~ and who pays the ~~fee established~~ fees charged under § 3512 of this title.

(b) Each license or registration ~~shall~~ must be renewed biennially, in ~~such the~~ the manner ~~as is~~ determined by the Division of Professional Regulation, ~~and~~ upon payment of the appropriate ~~fee and~~ fee, submission of a renewal form provided by the Division of Professional Regulation, and submission of proof that the licensee or registrant has met the continuing education requirements established by the Board.

(c) The Board, in its rules and regulations, shall determine the period ~~of time~~ within which a licensed psychologist, a licensed psychology associate, a registered doctoral-level psychological assistant, or a registered master's-level psychological assistant may still renew ~~such the~~ the licensee's license or registrant's license, ~~notwithstanding the fact that such registration, after the licensee or registrant has failed~~ fails to renew on or before the renewal date.

(d) All ~~individuals licensed under this chapter shall be~~ licensees are required to be fingerprinted by the State Bureau of Identification, at the licensee's expense, ~~for the purposes of performing~~ to perform subsequent criminal background checks. ~~Licensees shall submit by January 1, 2013, at the applicant's expense, fingerprints and other necessary information in order to obtain a criminal background check.~~

(e) All ~~individuals licensed under this chapter~~, licensee's, upon written request, may be placed in an inactive status in accordance with the Board's rules and regulations. ~~Such person~~ A licensee who has been placed in an inactive status may reenter practice upon written notification to the Board of the licensee's intent to do so reenter practice and completion of continuing education as required ~~in~~ by the Board's rules and regulations. The Board may ~~establish by regulation provisions~~ promulgate regulations for resuming active status.

Section 15. Amend § 3514, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3514. Grounds for refusal, ~~revocation~~ revocation, or suspension of licenses and registrations.

(a) A ~~practitioner licensed or registered under this chapter shall be~~ licensee or registrant is subject to disciplinary actions set forth in § 3516 of this title, if, after a hearing, the Board finds that the ~~psychologist or psychological assistant~~ individual has done any of the following:

(1) ~~Has employed~~ Employed or knowingly cooperated in fraud or material deception in order to acquire a license as a psychologist or a licensed psychology associate, or registration as a doctoral-level psychological assistant or master's-level psychological assistant; has impersonated another ~~person holding a license or registration~~, individual who is licensed or registered under this chapter, or allowed another person to use the ~~psychologist or psychological assistant~~ psychologist's or licensed psychology associate's license or doctoral-level psychological assistant's or master's-level psychological assistant's registration, or aided or abetted a ~~person~~ an individual not licensed as a psychologist or a licensed psychology associate, or registered as a doctoral-level psychological assistant or master's-level psychological assistant to represent that ~~person as~~ the individual is a ~~psychologist~~ psychologist, a licensed psychology associate, a doctoral-level psychological assistant or a master's-level psychological assistant; assistant.

(2) a. ~~Has been~~ Been convicted of a crime that is substantially related to the practice of ~~psychology~~; a psychology. A copy of the record of conviction certified by the clerk of the court entering the conviction ~~shall be~~ is conclusive evidence ~~therefor~~; however, if of the conviction. But if, after consideration of the factors set forth in § 8735(x)(3) of Title ~~29~~ Title 29, through a hearing or review of ~~documentation~~ documentation, the Board determines that granting a waiver to an initial applicant would not create an unreasonable risk to public safety, the Board, by an affirmative vote of a majority of the quorum, shall waive this paragraph (a)(2). A The Board may not grant a waiver ~~may not be granted~~ for a conviction of a felony sexual offense.

b.-c. [Repealed.]

f. ~~An applicant must submit, at the applicant's expense, fingerprints and other necessary information in order to obtain the following~~:

1. ~~A report of the applicant's entire criminal history record from the State Bureau of Identification or a statement from the State Bureau of Identification that the State Central Repository contains no such information relating to that person.~~

2. ~~A report of the applicant's entire federal criminal history record pursuant to the Federal Bureau of Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State~~

Bureau of Identification shall be the intermediary for purposes of this section and the Board shall be the screening point for the receipt of said federal criminal history records. An applicant may not be licensed until the applicant's criminal history reports have been produced.

An applicant whose record shows a prior criminal conviction that is substantially related to the practice of psychology may not be licensed by the Board unless a waiver is granted pursuant to this chapter. The State Bureau of Identification may release any subsequent criminal history to the Board;

(3) ~~Has excessively~~ Excessively used or abused drugs (including alcohol, narcotics or chemicals); drugs.

(4) ~~Has engaged~~ Engaged in an act of consumer fraud or deception; engaged in the restraint of competition; or participated in price-fixing activities; activities.

(5) ~~Has not conducted~~ Failed to conduct the practitioner's licensee's or registrant's professional activities in conformity with the Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (APA) (hereinafter referred to as the "Ethics Code"); and in conformity with the rules and regulations adopted by the Board to implement the Ethics Code; Code.

(6) ~~Has violated~~ Violated a lawful provision of this chapter, or any lawful regulation established ~~thereunder~~; under this chapter.

(7) ~~Has had~~ Had a license, ~~certification~~ certification, or registration as a ~~psychologist~~ psychologist, licensed psychology associate, doctoral-level psychological assistant, or master's-level psychological assistant suspended or revoked, or other disciplinary action taken by the appropriate licensing authority in another jurisdiction; ~~provided, however, that jurisdiction, if the underlying grounds for such the disciplinary action in another jurisdiction have been presented to the Board by certified record; record~~ and the Board has determined that the facts found by the appropriate authority in the other jurisdiction constitute 1 or more of the acts defined in this chapter. Every ~~person~~ individual licensed as a psychologist or ~~person~~ a licensed psychology associate and every individual registered as a doctoral-level psychological assistant or master's-level psychological assistant in this State ~~shall be~~ is deemed to have given consent to the release of this disciplinary information by the Board of Examiners of Psychologists or other comparable agencies in another jurisdiction and to waive all objections to the admissibility of previously adjudicated evidence of such acts or ~~offenses~~; offenses.

(8) ~~Has failed~~ Failed to notify the Board that the practitioner's licensee's or registrant's license, ~~certification~~ certification, or registration as a ~~psychologist~~ psychologist, a licensed psychology associate, a doctoral-level psychological assistant, or a master's-level psychological assistant in another state has been subject to discipline, or has been surrendered, ~~suspended~~ suspended, or revoked. A certified copy of the record of disciplinary action, surrender,

~~suspension~~ suspension, or revocation ~~shall be~~ is conclusive evidence ~~thereof; of the disciplinary action, surrender,~~
suspension, or revocation.

(9) While acting as a supervising ~~psychologist~~, psychologist or a supervising licensed psychology associate,
~~has~~ failed to supervise and take reasonable steps to see that doctoral-level psychological assistants or master's-level
psychological assistants perform services responsibly, ~~competently~~ competently, and ethically, in accordance with
rules and regulations established by the Board. Supervising psychologists ~~shall be~~ and supervising licensed psychology
associates are subject to disciplinary action for any acts or offenses ~~which~~ that are grounds for ~~such~~ disciplinary action
when ~~such~~ the acts or offenses are undertaken by the doctoral-level psychological assistant or the master's-level
psychological assistant acting under the supervising psychologist's or supervising licensed psychology associate's
direction or ~~control~~; control.

(10) Notwithstanding the time limitation set forth in § 8735(x)(4) of Title 29, ~~has~~ been convicted of a felony
~~sexual offense; offense.~~

(11) Failed to report child abuse or neglect as required by § 903 of Title 16, or any successor ~~thereto; to § 903~~
of Title 16.

(12) Failed to report to the Division of Professional Regulation as required by § 3518A of this ~~title; title.~~

(13) ~~Has engaged~~ Engaged in conversion therapy with a ~~child; or child.~~

(14) ~~Has referred~~ Referred a child to a provider in another jurisdiction to receive conversion therapy.

(b) ~~Where a practitioner~~ Whenever a licensee or registrant fails to comply with the Board's request that the
~~practitioner~~ licensee or registrant attend a hearing, the Board may petition the Superior Court to order ~~such~~ the licensee's or
registrant's attendance, and the ~~said Court or any judge assigned thereto shall have the~~ has jurisdiction to issue such order.

(c) Subject to the provisions of this chapter and subchapter IV of Chapter 101 of Title 29, ~~no license or registration~~
~~shall restricted, suspended or revoked by the Board, and no practitioner's~~ the Board may not restrict, suspend, or revoke a
license or registration or limit a licensee's or registrant's right to engage in the practice of psychology or to act as a
psychologist, licensed psychology associate, doctoral-level psychological assistant, or master's-level psychological
assistant ~~shall be limited by the Board until such practitioner~~ the licensee or registrant has been given ~~notice, notice~~ and an
opportunity to be heard, in accordance with the Administrative Procedures Act.

Section 16. Amend § 3515, Title 24 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3515. Complaints.

(a) ~~All complaints shall be received and investigated by the~~ The Division of Professional Regulation shall receive
and investigate all complaints, in accordance with § 8735(h) of Title 29, ~~and the Title 29. The Division shall be responsible~~
~~for issuing of Professional Regulation shall issue~~ a final written report at the conclusion of its investigation.

(b) ~~When~~ Whenever it is determined that an individual is engaging in the practice of psychology or is using the
title “psychologist” and is not licensed or registered ~~under the laws of this State; this chapter,~~ the Board shall apply to the
Office of the Attorney General to issue a cease and desist order after formally warning the unlicensed ~~practitioner~~
individual in accordance with the provisions of this chapter.

(c) ~~Any~~ The Division of Professional Regulation shall investigate complaints involving allegations of
unprofessional conduct or ~~incompetence shall be investigated by the Division of Professional Regulation.~~ incompetence.

Section 17. Amend § 3516, Title 24 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3516. Disciplinary sanctions.

(a) ~~The~~ Whenever the Board finds that a licensee or registrant has violated § 3514 of this title, the Board may
impose ~~any 1 or more~~ of the following ~~sanctions, singly or in combination, when it finds that one of the conditions or~~
~~violations set forth in § 3514 of this title applies to a practitioner regulated by this chapter:~~ sanctions:

(1) Issue a letter of reprimand.

(2) Censure ~~a practitioner.~~ a licensee or registrant.

(3) Place ~~a practitioner~~ a licensee or registrant on probationary status, and require the ~~practitioner to:~~ licensee
or registrant to do all of the following:

a. Report regularly to the Board upon the matters which are the basis of the ~~probation;~~ probation.

b. Limit all practice and professional activities to ~~those~~ the areas prescribed by the Board.

(4) Suspend any ~~practitioner's license.~~ licensee's license or registrant's registration.

(5) Revoke any ~~practitioner's license.~~ licensee's license or registrant's registration.

(6) Impose a monetary penalty not to exceed \$500 for each violation.

(7) The Board shall permanently revoke the license or registration of any ~~person~~ individual who the Board
determines has been convicted of a felony sexual offense.

(b) The Board may withdraw or reduce conditions of probation when it finds that the deficiencies which required
~~such action~~ the Board to place an individual on probationary status have been remedied.

(c) ~~In the event of~~ If a formal or informal complaint concerning the activity of a licensee or registrant that presents
a clear and immediate danger to the public health, ~~safety~~ safety, or welfare, the Board may temporarily suspend the

731 ~~person's license, licensee's license or registrant's registration,~~ pending a hearing, upon the written order of the Secretary of
732 ~~State State,~~ or the Secretary's designee, with the concurrence of the Board ~~chair~~ President, or the Board ~~chair's~~ President's
733 designee. An order temporarily suspending a license may not be issued unless the ~~person~~ individual or the ~~person's~~
734 individual's attorney ~~received~~ receives at least 24 hours' written or oral notice before the temporary suspension so that the
735 ~~person~~ individual or the ~~person's~~ individual's attorney may file a written response to the proposed temporary suspension.
736 The decision ~~as to~~ whether to issue the temporary order of suspension ~~will~~ must be decided on the written submissions. An
737 order of temporary suspension pending a hearing may remain in effect for no longer than 60 days from the date of the
738 issuance of the order unless the temporarily suspended ~~person~~ individual requests a continuance of the hearing date. If the
739 temporarily suspended ~~person~~ individual requests a continuance, the order of temporary suspension remains in effect until
740 the hearing is convened and a decision is rendered by the Board. ~~A person~~ An individual whose license or registration has
741 been temporarily suspended pursuant to this section may request an expedited hearing. The Board shall schedule the
742 hearing on an expedited basis, ~~provided that if~~ provided that if the Board receives the request within 5 calendar days from the date on which
743 the ~~person~~ individual received notification of the decision to temporarily suspend the ~~person's license, individual's license~~
744 or registration.

745 (d) ~~Where a~~ Whenever an individual's license or registration has been suspended due to a disability of the ~~licensee,~~
746 individual, the Board may reinstate ~~such~~ the individual's license or registration if, after a hearing, the Board is satisfied that
747 the ~~licensee~~ individual is able to practice with reasonable skill and safety.

748 (e) As a condition to reinstatement of a suspended ~~license, license or registration,~~ or removal from probationary
749 status, the Board may impose ~~such~~ any disciplinary or corrective measures ~~as are~~ authorized under this chapter.

750 Section 18. Amend § 3517, Title 24 of the Delaware Code by making deletions as shown by strike through and
751 insertions as shown by underline as follows:

752 § 3517. Hearing procedures.

753 (a) If a complaint is filed with the Board pursuant to § 8735(h) of Title 29, alleging violation of § 3514 of this
754 title, the Board shall set a time and place to conduct a hearing on the complaint. Notice of the hearing ~~shall~~ must be given
755 and the hearing conducted in accordance with the Administrative Procedures Act, Chapter 101 of Title 29.

756 (b) All hearings ~~shall be informal~~ are informal, without use of rules of evidence. If the Board finds, by a majority
757 vote of all members, that the complaint has merit, the Board shall take such action permitted under this chapter as it deems
758 necessary. The Board's decision ~~shall~~ must be in writing and ~~shall~~ must include ~~it's the Board's~~ its reasons for ~~such~~ its
759 decision. The Board's decision ~~shall~~ must be mailed immediately to the ~~practitioner, licensee or registrant.~~

760 (c) ~~Where the practitioner is in disagreement~~ If a licensee or registrant disagrees with the action of the Board, the
761 ~~practitioner~~ licensee or registrant may appeal the Board's decision to the Superior Court within 30 days of ~~service~~, service
762 or within 30 days of the postmarked date of the copy of the decision mailed to the ~~practitioner~~. licensee or registrant. Upon
763 ~~such a licensee's or registrant's~~ appeal the Court shall hear the evidence on the record. Stays ~~shall~~ must be granted in
764 accordance with § 10144 of Title 29.

765 Section 19. Amend § 3518, Title 24 of the Delaware Code by making deletions as shown by strike through and
766 insertions as shown by underline as follows:

767 § 3518. Reinstatement of a suspended ~~license~~; license or registration; removal from probationary status.

768 (a) As a condition to reinstatement of a suspended license or registration, or removal from probationary status, the
769 Board may reinstate ~~such a suspended~~ license or registration or remove a licensee or registrant from probationary status if,
770 after a hearing, the Board is satisfied that the licensee or registrant has taken the prescribed corrective actions and ~~otherwise~~
771 satisfied all of the conditions of the suspension ~~and/or~~ or the probation.

772 (b) ~~Where~~ Whenever a license or registration has been suspended due to the licensee's or registrant's inability to
773 practice ~~pursuant to~~ under this chapter, the Board may reinstate ~~such the suspended~~ license or registration, if, after a
774 hearing, the Board is satisfied that the licensee or registrant is again able to perform the essential functions of a ~~psychologist~~
775 psychologist, licensed psychological associate, doctoral-level psychological assistant, or master's-level psychological
776 assistant, with or without reasonable accommodations; and/or and there is no longer a significant risk of substantial harm to
777 the health and safety of the individual or others.

778 (c) ~~Applicants for~~ Licensees or registrants seeking reinstatement must pay the appropriate fees and submit
779 documentation required by the Board as evidence that all the conditions of a suspension ~~and/or~~ or probation have been met.
780 ~~Proof~~ The Board may also require proof that the ~~applicant~~ licensee or registrant has met the continuing education
781 requirements of this chapter ~~may also be required, chapter,~~ as appropriate.

782 Section 20. Amend § 3518A, Title 24 of the Delaware Code by making deletions as shown by strike through and
783 insertions as shown by underline as follows:

784 § 3518A. Duty to report conduct that constitutes grounds for discipline or inability to practice.

785 (a) Every ~~person to whom a license to practice has been issued~~ licensee under this chapter ~~has a duty to~~ shall report
786 to the Division of Professional ~~Regulation~~ Regulation, in ~~writing~~ writing, information that the licensee reasonably believes
787 indicates that any other ~~practitioner licensed under this chapter,~~ licensee, or any other health-care provider, has engaged in
788 or is engaging in conduct that would constitute grounds for disciplinary action under this chapter or the other health-care
789 provider's licensing statute.

(b) Every ~~person to whom a license to practice has been issued under this chapter~~ licensee shall report to the Division of Professional ~~Regulation~~ Regulation, in ~~writing~~ writing, information that the licensee reasonably believes indicates that any other ~~practitioner licensed under this chapter~~, licensee, or any other health-care provider, may be unable to practice with reasonable skill and safety to the public for any of the following reasons:

(1) Mental illness or mental incompetence.

(2) Physical illness, including deterioration through the aging process or loss of motor skill.

(3) Excessive use or abuse of drugs, including alcohol. drugs.

(c) Every ~~person to whom a license to practice has been issued under this chapter~~ licensee shall report to the Division of Professional ~~Regulation~~ Regulation, in writing, any information that the reporting ~~person~~ licensee reasonably believes indicates that a ~~person~~ an individual certified and registered to practice medicine in this State is is, or may ~~be~~ be, guilty of unprofessional conduct or may be unable to practice medicine with reasonable skill or safety to patients ~~by reason for any of mental~~ the following reasons:

(1) ~~Mental illness or mental incompetence; physical~~ incompetence.

(2) ~~Physical illness, including deterioration through the aging process or loss of motor skill; or excessive~~ skill.

(3) Excessive use or abuse of ~~drugs, including alcohol. drugs.~~

(d) ~~All~~ A licensee shall file all reports required under subsections (a), ~~(b)~~ (b), and (c) of this section ~~must be filed~~ within 30 days of the licensee becoming aware of such information. any information that the licensee is required to report. ~~A person~~ A licensee reporting or testifying in any proceeding as a result of making a report ~~pursuant to~~ under this section is immune from claim, suit, liability, damages, or any other recourse, civil or criminal, so long as the ~~person~~ licensee acted in good faith and without gross or wanton ~~negligence; good~~ negligence. For purposes of this section, good faith being is presumed until proven otherwise, and a complainant must show gross or wanton negligence required to be shown by the ~~complainant. negligence.~~

Section 21. Amend § 3519, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3519. Exemptions.

(a) Nothing in this chapter ~~shall~~ may be construed to prevent the teaching of psychology, the conduct of psychological research, or the provision of services or consultation to organizations or ~~institutions; provided, that~~ institutions, if such teaching, ~~research~~ research, or service or consultation does not involve the direct practice of psychology with individuals or groups of individuals who are ~~themselves, rather than a third party~~, the intended beneficiaries of such

819 services. ~~Persons~~ Individuals holding an earned doctoral degree in psychology from an institution of higher education may
820 use the title “psychologist” in conjunction with the activities permitted by this subsection.

821 (b) Nothing in this chapter ~~shall~~ may be construed to prevent ~~an individual who is a qualified members member~~ of
822 other recognized professions from rendering services consistent with ~~their~~ the individual’s professional training, the code of
823 ethics of ~~their~~ the individual’s respective ~~professions~~ profession, and the laws of this State; ~~provided, that they do not hold~~
824 ~~themselves out~~ State, if the individual does not represent themselves to the public by using any title or description stating or
825 implying that ~~they are psychologists~~ the individual is a psychologist, a licensed psychology associate, a doctoral-level
826 psychological assistant, or a master’s-level psychological assistants or are assistant, that the individual is licensed to
827 practice psychology as a psychologist or licensed psychology associate, or that the individual is registered to act as a
828 doctoral-level psychological assistant or a master’s-level psychological assistants. assistant.

829 (c) Nothing in this chapter ~~shall~~ may be construed to restrict the activities of rabbis, priests, ~~ministers~~ ministers, or
830 the clergy of any church, synagogue, religious denomination denomination, or sect, ~~when such~~ if the activities are within
831 the scope of the performance of their regular or specialized ministerial ~~duties,~~ duties and no separate charge is made, or
832 ~~when if~~ if such activities are performed, whether with or without charge, for, or under auspices or sponsorship, individually,
833 or in conjunction with others, of an established and legally recognizable church, synagogue, ~~denomination~~ religious
834 denomination, or sect; and the person rendering service remains accountable to its established authority; ~~provided, that and~~
835 if they do not represent themselves to be ~~psychologists~~ psychologists, licensed psychological associates, doctoral-level
836 psychological assistants, or master’s-level psychological assistants.

837 (d) Individuals who have been certified as school psychologists by the Department of Education ~~shall be~~ are
838 permitted to use the ~~term~~ title “school psychologist” ~~and/or or~~ “certified school psychologist.” ~~Such persons shall be~~ But
839 the individuals are restricted in their practice to employment within those settings under the purview of the Department of
840 Education and the State Board of Education.

841 Section 22. Amend § 3520, Title 24 of the Delaware Code by making deletions as shown by strike through and
842 insertions as shown by underline as follows:

843 § 3520. Penalty.

844 ~~A person~~ (a) An individual is guilty of a misdemeanor whenever an individual not currently licensed as a
845 ~~psychologist,~~ psychologist or a licensed psychology associate, or registered as a doctoral-level psychological assistant or
846 master’s-level psychological assistant, under this chapter, when guilty of engaging does any of the following:

847 (1) Engages in the practice of psychology, or of acting psychology.

(2) Acts as a psychologist, licensed psychology associate, doctoral-level psychological assistant or using assistant, or master's-level psychological assistant.

(3) Uses, in connection with the ~~practitioner's~~ individual's own name, or otherwise ~~assuming~~ assumes or ~~using~~ uses any title or description ~~conveying, or tending that conveys or tends~~ to convey the impression that the ~~practitioner individual~~ individual is ~~qualified to practice psychology,~~ a psychologist, a licensed psychology associate, a doctoral-level psychological assistant, or ~~to act as a master's-level psychological assistant, such offender shall be guilty of a~~ misdemeanor. ~~assistant.~~

(b) Upon the first offense, ~~the practitioner shall be fined~~ the individual is subject to a fine of not less than \$500 nor more than ~~\$1000~~ \$1,000 for each ~~offense;~~ offense and, in addition, may be imprisoned for not more than 1 year. For a ~~second or each subsequent conviction,~~ offense, the ~~fine shall be~~ individual is subject to a fine of not less than ~~\$1000~~ \$1,000 nor more than ~~\$2000 for each offense~~ \$2,000. The Superior Court ~~shall have~~ has jurisdiction over all violations of this chapter.

Section 23. Amend § 3521, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3521. Treatment records; discontinuation of a practice; termination of a patient relationship; death of a ~~psychologist.~~ licensee.

(a) (1) A ~~psychologist who is licensed under this chapter~~ licensee shall provide notice ~~under this section~~ to all affected patients ~~no less than~~ at least 30 days before doing any of the following:

a. Discontinuing a psychology practice in this State ~~when~~ if the ~~psychologist~~ licensee is not transferring patient records to another provider in this State.

b. Terminating a patient relationship.

(2) The notice required under paragraph (a)(1) of this section must include all of the following:

a. ~~How~~ Instructions on how the patient can obtain the patient's records.

b. The name, phone number, and address of providers in the area who may be available to accept new patients who require ~~that~~ the same medical care.

c. The date the ~~psychologist~~ licensee will discontinue services.

(3) The notice required under paragraph (a)(1) of this section must be provided ~~by~~ through all of the ~~following;~~ following methods:

a. If the patient is enrolled to receive messages through an electronic medical record system, an electronic message through that system.

878 b. A letter sent by first-class mail.

879 (4) When a psychologist licensee is closing a psychology practice and patient records will no longer be
880 available at the psychologist's licensee's place of business, the psychologist licensee shall ~~provide to the Board notice~~
881 notify the Board of how former patients ~~may~~ can obtain the patient's records.

882 (b) (1) If a psychologist licensee dies and has not transferred patient records to another provider ~~and has not made~~
883 ~~provisions or arranged for a the~~ transfer of patient records ~~to occur~~ upon the psychologist's the licensee's death, a personal
884 representative of the psychologist's licensee's estate shall provide notice to the deceased psychologist's licensee's patients
885 of record by doing all of the following:

886 a. Publishing a notice ~~to that effect~~ in a newspaper of general circulation in the area where the deceased
887 psychologist licensee practiced. The notice must be published at least 1 time per month in the 3-month period after
888 the psychologist's licensee's death.

889 b. Providing notice to all patients of record who have not requested their records within 30 days after
890 ~~publication of publishing the first notice published~~ under paragraph (b)(1)a. of this section ~~by through~~ all of the
891 ~~following:~~ following methods:

892 1. If the patient is enrolled to receive messages through an electronic medical record system, an
893 electronic message through that system.

894 2. A letter sent by first-class mail.

895 (2) The notice required under paragraph (b)(1) of this section must include all of the ~~following:~~ following
896 information:

897 a. That the psychologist licensee has died.

898 b. How the patient can obtain the patient's records.

899 (3) The personal representative of the person's licensee's estate shall ~~provide the Board notice~~ notify the
900 Board of how a former patients patient may obtain the patient's records.

901 (c) (1) If a patient changes from the care of a psychologist licensee to another provider, the psychologist licensee
902 shall ~~transfer~~ transfer, with the patient's written consent, the patient's records to the new provider upon the request of either
903 the patient or the new ~~provider with the patient's written consent:~~ provider.

904 (2) If the patient and psychologist licensee agree, the psychologist licensee may forward a summary of the
905 patient's record to the new provider in lieu of transferring the entire record, at no charge to the patient.

906 (d) (1) Patients have the right to obtain a copy of their records from a psychologist licensee.

(2) Unless a patient is requesting a copy of their records under subsection (a) or (b) of this section or to make or complete an application for a disability benefits program, a patient who requests a copy of their records is subject to ~~any~~ 1 or more of the following charges:

a. The reasonable expenses of copying the patient's records, according to the payment schedule established under paragraph (d)(3) of this section.

b. The actual cost of postage or shipping, if the records are mailed or shipped.

c. Charges for copies of records not susceptible to photostatic reproduction, such as radiology films, models, photographs, or fetal monitoring strips, may be the full cost of the reproduction.

(3) The Board shall establish a payment schedule for copies of patient records under this section and must review this payment schedule annually.

(4) The ~~psychologist licensee~~ or ~~their~~ the licensee's third-party release-of-information service may require payment of all costs allowed under paragraph (d)(2) of this section before providing the copies of the records.

(e) This section does not apply to a ~~psychologist licensee~~ who has seen or treated a patient on referral from another provider and who has provided a copy of the record of the diagnosis or treatment to at least 1 of the following:

(1) The referring provider.

(2) A hospital or an agency that has provided treatment for the patient.

(f) A ~~psychologist licensee~~ has 45 days from the closure of the record or the assembly of a complete record to fulfill a request for patient records, unless a faster response is medically necessary.

(g) (1) A ~~psychologist licensee~~ may permanently dispose of a patient's record in a manner that ensures confidentiality of the records 7 years after the ~~following:~~ dates of any the following events:

a. Discontinuing business in this State.

b. The last entry ~~date~~ in the patient's record after terminating the patient relationship or the patient changes from the care of the ~~psychologist licensee~~ to another provider.

(2) Seven years after the death of the ~~psychologist, licensee,~~ the ~~psychologist's licensee's~~ personal representative may permanently dispose of patient records that have not been procured, in a manner that ensures confidentiality of the records.

(3) A ~~psychologist licensee,~~ or the personal representative of the ~~psychologist licensee~~ who disposes of patient records in accordance with this section is not liable for any direct or indirect loss suffered as a result of ~~the disposal~~ disposing of a patient's records.

(h) The Board may find that a psychologist licensee who violates this section has committed unprofessional conduct, and any aggrieved ~~patient~~ patient, or the patient's personal ~~representative~~ representative, may bring a civil action for damages or injunctive ~~relief, or both,~~ relief against the ~~violation,~~ licensee.

Section 24. Amend § 3522, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3522. Appointment of a custodian of patient records.

(a) If the Board receives a formal or informal complaint concerning access to patient records as a result of a ~~psychologist's licensee's~~ physical or mental incapacity, death, or abandonment or involuntary discontinuation of a psychology practice in this State, the Board may temporarily or permanently appoint an individual or entity as custodian of the ~~psychologist's licensee's~~ patient records after an investigation ~~in accordance with the procedures~~ is completed under § 8735(h) of Title 29.

(b) (1) The custodian of patient records appointed under subsection (a) of this section shall notify the ~~psychologist's licensee's~~ patients of record of the custodian's appointment by doing all of the following:

a. Publishing a notice ~~to that effect~~ in a newspaper of general circulation in the area where the ~~psychologist licensee~~ practiced. The notice must be published at least 1 time per month in the 3-month period after the custodian's ~~appointment and must explain how a patient can procure the patient's records.~~ appointment.

b. ~~Notifying,~~ Sending, by first-class mail, notice to all patients of record who have not requested their records within 30 days after publication of the first notice published under paragraph (b)(1)a. of this ~~section that the custodian has been appointed and explaining how the patient can procure the patient's records.~~ section.

(2) The notice required under paragraph (b)(1) of this section must include all of the following information:

a. That the licensee has died.

b. How the patient can obtain the patient's records.

(c) Seven years after being appointed, the custodian may permanently dispose of patient records that have not been procured, in a manner that ensures confidentiality of the records.

(~~e~~) (d) A custodian of ~~patient records appointed under this section~~ who disposes of patient records ~~in accordance with the provisions~~ under subsection (c) of this section is not liable for any direct or indirect loss suffered as a result of the disposal of a patient's records.

Section 25. This Act takes effect on enactment and is to be implemented the earlier of the following:

(1) Twelve months from the date of the Act's enactment.

965 (2) Notice by the Board of Examiners of Psychologists published in the Register of Regulations that final
966 regulations to implement this Act have been adopted.

SYNOPSIS

This Act adds 2 additional psychology professionals regulated under Chapter 35 of Title 24: (1) a licensed psychology associate and (2) a master's-level psychological assistant. This Act also renames the psychological assistant registered under § 3509 of Title 24 to "doctoral-level psychological assistant" to mark the difference in education between the existing psychological assistant and the master's-level psychological assistant added by this Act. This Act also changes § 3511 to clarify that licensing through reciprocity does not apply to individuals registered under § 3509 and § 3509A.

A licensed psychology associate may independently practice at a master's-level of education and training, subject to the limitations listed under § 3508A(e) added by this Act. The Board of Examiners of Psychologists (the "Board") may grant a license to practice as a licensed psychology associate if an applicant meets certain qualifications, including holding a master's degree in psychology from an accredited school, completing an internship, obtaining at least 2 years of supervised professional experience, and achieving a passing score on a Board-approved examination. A licensed psychology associate is subject to the same standards as a psychologist licensed under Chapter 35 of Title 24, including handling of patient records, mandatory reporting, character and fitness requirements, and professional discipline. A licensed psychology associate also may be granted a license by reciprocity.

An individual who is seeking further licensure under Chapter 35 of Title 24 may register as a master's-level psychological assistant. A master's-level psychological assistant may perform specific functions, appropriate for the assistant's level of education and training, under the supervision of a licensed psychologist or licensed psychology associate. The supervising licensed psychologist or supervising licensed psychology associate may apply to the Board for registration of a master's-level psychological assistant and shall provide to the Board evidence that the individual presented for registration has the required master's-level of education and training, that the individual will receive appropriate training and supervision, that the individual meets character and fitness requirements. The supervising psychologist or licensed psychology associate must also give the Board a statement outlining the specific functions the master's-level psychological assistant will perform under supervision. The individual seeking registration must provide a statement, under oath, that the individual will not practice independently, will perform only the specific functions outlined in the statement submitted by the supervising psychologist or supervising licensed psychology associate, and will not represent that the individual is a licensed psychologist or licensed psychology associate. A master's-level psychological assistant is subject to the same professional standards and professional discipline as a doctoral-level psychological assistant.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual. Technical changes include removing deadlines that have passed and are no longer relevant, changing language to increase clarity and consistency, and changing the structure of certain paragraphs to increase readability and organization. Additionally, to clarify that all applicants for licensure or registration under Chapter 35 of Title 24 must provide criminal background checks, this Act moves the provision requiring applicants to provide for fingerprints to obtain a criminal background report from § 3514 of Title 24 to the qualification requirements for each individual licensee or registrant under § 3508, § 3508A, § 3509, and § 3509A of Title 24.

This Act requires a greater than majority vote for passage because § 11 of Article VIII of the Delaware Constitution requires the affirmative vote of three-fifths of the members elected to each house of the General Assembly to impose or levy a tax or license fee.

This Act is effective on its enactment and is to be implemented the earlier of the following:

1. Twelve months from the date of enactment.
2. Notice by the Board of Examiners of Psychology published in the Register of Regulations that final regulations to implement this Act have been adopted.

Author: Senator Pettyjohn